

BREYER, J., dissenting

Court referred to longstanding Supreme Court precedent stating or suggesting that the Constitution provides federal courts with considerable legal authority to use traditional remedies to right constitutional wrongs. That precedent begins with *Marbury v. Madison*, 1 Cranch 137 (1803), which effectively placed upon those who would deny the existence of an effective legal remedy the burden of showing why their case was special. Chief Justice John Marshall wrote for the Court that

“[t]he very essence of civil liberty [lies] in the right of every individual to claim the protection of the laws, whenever he receives an injury.” *Id.*, at 163.

The Chief Justice referred to Blackstone’s Commentaries stating that there

“‘is a general and indisputable rule, that where there is a legal right, there is also a legal remedy . . . [and that] it is a settled and invariable principle in the laws of England, that every right, when withheld, must have a remedy, and every injury its proper redress.’” *Ibid.*

The Chief Justice then wrote:

“The government of the United States has been emphatically termed a government of laws, and not of men. It will [not] deserve this high appellation, if the laws furnish no remedy for the violation of a vested legal right.” *Ibid.*

He concluded for the Court that there must be something “peculiar” (*i. e.*, special) about a case that warrants “exclu[ding] the injured party from legal redress [and placing it within] that class of cases which come under the description of *damnum absque injuria*—a loss without an injury.” *Id.*, at 163–164; but cf. *id.*, at 164 (placing “political” questions in the latter, special category).